

		This interrogatory seeks information subject to the attorney-client privilege which is broadly construed, and extends to “factual information” and “legal advice.” (See <i>Mitchell v. Superior Court</i> (1984) 37 Cal.3d 591, 601.) Moreover, this interrogatory seeks information that is not reasonably calculated to lead to the discovery of admissible evidence. (Code of Civ. Proc., § 2017.010.)” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory No. 215.1 based on Plaintiff’s clarified definition of the term “INCIDENT.” The court also notes the limits of attorney-client privilege as discussed above. <u>Monetary Sanctions</u> The court DENIES both Plaintiff’s requests for monetary sanctions and Defendant’s requests for monetary sanctions, as both parties share fault in the discovery disputes and both have raised meritorious arguments. Plaintiff is ordered to give notice of this ruling to Defendant.
10	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	<u>MOTION 1</u> Plaintiff Maria Elena Hernandez’s (“Plaintiff”) Motion to Compel Further Responses from Defendant Sun Mar Management Services (“Sun Mar”) to Request for Identification and Production of Documents (“RFP”), Set One is DENIED. “[A] civil litigant’s right to discovery is broad.” (<i>Yelp Inc. v. Superior Court</i> (2017) 17 Cal. App. 5th 1, 15.) “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (CCP § 2017.010.) However, courts are also mindful of the “abuse of the discovery system,” and “misuses to which the discovery statutes are prone absent judicial consideration for the great burdens which may be imposed on parties and nonparties alike.” (<i>Calcor Space Facility, Inc. v. Superior Ct.</i> (1997) 53 Cal. App. 4th 216, 221.) “Courts must insist discovery devices be used as tools to facilitate litigation rather than as weapons to wage litigation.” (<i>Id.</i>) “These tools should be well calibrated; the lancet is to be preferred over the sledge hammer.” (<i>Id.</i>) “Because of the potential for promiscuous discovery imposing great burdens, even

		though ultimately the probative value of the discovered material may be questionable, trial judges must carefully weigh the cost, time, expense and disruption of normal business resulting from an order compelling the discovery against the probative value of the material which might be disclosed if the discovery is ordered.” (<i>Id.</i> at 223.) “Although the scope of civil discovery is broad, it is not limitless.” (<i>Id.</i>) “The motion [for an order compelling a further response] shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (CCP § 2031.310(b)(1).) At issue in this Motion are the following RFPs: • RFP No. 2: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the staffing levels of DIRECT CAREGIVERS in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 3: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the staffing levels of DIRECT CAREGIVERS in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 4: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the census in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 5: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the census in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 6: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, relating to interaction with the Department of Public Health and the FACILITY during the time period of February 19, 2022, through February 19, 2026 as it relates to the FACILITY staffing of DIRECT CAREGIVERS. • RFP No. 7: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, relating to interaction with the Department of Public Health and the FACILITY during the time period of February 19, 2022, through February
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		19, 2026 as it relates to the FACILITY staffing of DIRECT CAREGIVERS. These RFPs seek any and all documents exchanged between defendants concerning the subject facility’s staffing levels, any census of the facility between the specified time periods, and any interactions between the facility and the Department of Public Health. Plaintiff argues that this discovery is necessary and relevant to establish alter ego liability between the Defendants in this action. However, it is clear from the face of these document requests that they are not aimed to uncover any alter ego evidence, but concern entirely different subject matters. Plaintiff fails to articulate how staffing levels, a census, or interactions with the Department of Public Health have anything to do with the factors that establish alter ego liability. The court finds that Plaintiff has failed to show good cause for compelling further responses to the overly broad document requests that are the subject of this Motion. Accordingly, the Motion is denied, as is Plaintiff’s request for monetary sanctions. Moving party is ordered to give notice of this ruling. <u>MOTION 2</u> Plaintiff’s Motion to Compel Further Responses from Sun Mar to Form Interrogatories, Set One is DENIED as MOOT. After this Motion was filed, on July 14, 2026, Sun Mar served supplemental responses to Plaintiff’s Form Interrogatories Set One, which amended Sun Mar’s response to Form Interrogatory No. 4.1, 50.3, 50.4 and 50.5. Form Interrogatory No. 4.1 asks for information regarding any relevant insurance policies. Initially, Sun Mar only identified Bellflower Skilled, LLC as an insured party, and Plaintiff asserted that there were additional insureds under the relevant policies. In its supplemental response, Sun Mar now identifies Sun Mar Management Services, 3050 Saturn Street, Brea, CA 92821; Sun Meridian Management Services, 3050 Saturn Street, Brea, CA 92821; and Bellflower Skilled, LLC, 16910 Woodruff Ave, Bellflower, CA 90706 as the entities covered by the insurance policy at issue related to this case. As Plaintiff only sought a further response as to No. 4.1 to show whether or not the other Defendants are adequately insured, the court finds that Sun Mar’s supplemental response is adequate.
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		The remaining Form Interrogatories asked Sun Mar to state whether it asserted that any performance under the agreements in the action was excused (50.3), and whether any agreements were terminated (50.4) or unenforceable (50.5). Sun Mar initially answered “yes” to each of these Form Interrogatories, but has now amended its answers to be “no” to each. Therefore, no further response is necessary. Based on the foregoing, this Motion is denied as moot, and Plaintiff’s request for monetary sanctions is denied. Moving party is ordered to give notice of this ruling. <u>MOTION 3</u> Plaintiff’s Motion to Compel Further Responses from Defendant Bellflower Skilled, LLC (“Bellflower”) to RFP, Set One is GRANTED IN PART as to RFP Nos. 5-10, 16-17 and 20, and DENIED IN PART as to RFP Nos. 21-22. IT IS ORDERED THAT, within thirty (30) days of this ruling, Bellflower shall provide Plaintiff with complete, code-compliant, further responses to RFP Nos. 5-10, 16-17 and 20, that identifies documents responsive to each request and provides sufficient explanation in accordance with the Code of Civil Procedure as to any documents that have been lost or destroyed. IT IS FURTHER ORDERED THAT within fourteen (14) days of this ruling, the parties shall meet and confer to create a protective order with respect to any confidential information that may be subject to discovery. IT IS FURTHER ORDERED THAT Bellflower shall produce to Plaintiff any responsive documents to RFP Nos. 5-10, 16-17 and 20, within fifty (50) days of this ruling. The parties may extend this time period for up to twenty (20) additional days by mutual agreement confirmed in writing. RFP No. 5 states: Please provide all completed CMS 672 of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Plaintiff contends that no CMS 672 forms have been produced by Bellflower. Bellflower shall identify and produce any responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.”
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	(CCP § 2031.230.) “This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (<i>Id.</i>) “The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (<i>Id.</i>) RFP No. 6 states: Please provide all completed Roster/Sample Matrix “802 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower contends that it has produced documents responsive to this request. However, Bellflower must amend its response to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 7 states: Please provide all completed FACILITY CASPER “Quality Measure” reports encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 8 states: Please provide the Resident Utilization Group score for each resident of the FACILITY and for each date of the resident’s stay, encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 9 states: Please provide the FACILITY HIPPS billing codes for each resident of the FACILITY and for each date of the resident’s stay, encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower claims that producing documents responsive to RFP Nos. 7, 8 and 9, would disclose protected health information, but Plaintiff argues that these documents either do not identify the resident patients or any identifying information may be redacted. Bellflower shall provide further responses to these RFPs, identify and produce any responsive documents to these requests, redacting any patient-identifying information to the extent it exists. RFP No. 10 states: Please provide all assignment sheets and/or schedules during the time period of February 19, 2022, through February 19, 2026 for DIRECT CAREGIVERS in the
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	FACILITY during the time period of February 19, 2022, through February 19, 2026. RFP No. 16 states: Please provide all completed California Department of Health “530 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 17: Please provide all completed California Department of Health “612 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower contends that it has produced documents responsive to RFP Nos. 10, 16 and 17. However, Bellflower must amend its responses to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 20 states: Please provide all DOCUMENTS evidencing and/or consisting of all agreements between the responding party and any named Defendant in this action relating to the operations of the FACILITY that was in effect during any portion of February 19, 2022, through February 19, 2026. Bellflower argues that any documents produced responsive to this request contain confidential business information, and should be subject to a protective order. As stated above, the court orders the parties to meet and confer to create a protective order with respect to confidential information produced in this action, and then any responsive documents to this RFP shall be produced subject to that protective order. Bellflower must also amend its responses to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 21 states: Please provide all DOCUMENTS exchanged between YOU and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the staffing of DIRECT CAREGIVERS in the FACILITY. As the court stated in its July 20, 2026 (ROA 111) Minute Order concerning a similar discovery request, the request is overbroad as it seeks all documents exchanged by Defendants that reference in any manner the staffing at the facility. Plaintiff is only entitled to documents that are relevant or
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		are reasonably calculated to lead to the discovery of relevant evidence regarding the alleged understaffing at the subject facility. (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247 [“A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.”].) Accordingly, the Motion is denied as to RFP No. 21. RFP No. 22 states: Please provide all DOCUMENTS exchanged between YOU and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the census in the FACILITY. Similar to RFP No. 21, this discovery request is overbroad as it seeks all documents exchanged by Defendants that reference in any manner the census at the facility. Plaintiff could simply request the census itself should there be a need for the census data for the facility. Thus, the Motion is also denied as to RFP No. 22. Plaintiff’s request for monetary sanctions is DENIED. Moving party is ordered to give notice of this ruling.
11	30-2026-01558254 Santillan vs. Mil-Spec Heat Treating Inc.	Defendant Co-Advantage Resources, Inc.’s (“CARI”) Demurrer to Plaintiff Ruben Santillan’s (“Plaintiff”) First Amended Complaint (“FAC”) is OVERRULED. IT IS ORDERED THAT, within fourteen (14) days of this ruling, CARI shall file and serve an Answer to Plaintiff’s FAC. As a threshold matter, Plaintiff argues that the demurrer is untimely as it was not filed within thirty days of CARI being served with the FAC. (CCP § 430.40(a) [“A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”].) CARI filed the instant Demurrer on August 19, 2026, which is 103 days after it was served with the FAC. Whether to consider an untimely demurrer is within the court’s discretion. (<i>McAllister v. Cnty. of Monterey</i> (2007) 147 Cal. App. 4th 253, 281–82 [“There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is involved, and where, as here, the late filing was a mere irregularity [citation]; the granting or denial of the motion is a matter which lies within the discretion of the court.”].) In the interests of judicial efficiency, the court